



CHAPTER lvi.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Cranleigh District Water Southwold Water and West Surrey Water. A.D. 1926.
[4th August 1926.]

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 : 33 & 34
Vict. c. 70.
36 & 37
Vict. c. 89.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 7) Act 1926. Short title.

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S C H E D U L E.

CRANLEIGH DISTRICT WATER.

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Provisional Order under the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 to make provision for the transfer to the Cranleigh Water Company Limited of the undertaking authorised by the Chiddingfold and District Water Order 1912 to extend the limits of supply of the Company to authorise them to raise additional capital and for other purposes.

The Minister of Health in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows :—

Short and
collective
titles.

1. This Order may be cited as the Cranleigh District Water Order 1926 and the Cranleigh Water Order 1886 and this Order may be cited together as the Cranleigh District Water Orders 1886 and 1926.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as “ the commencement of this Order.”

Incorporation
of Acts.

3. So far as the same relate to the powers conferred by this Order the provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) and of the Waterworks Clauses Acts 1847 and 1863 are (except where expressly varied by this Order) incorporated with and form part of this Order :

Provided that Section 44 of the Waterworks Clauses Act 1847 shall for the purposes of this Order have effect as if the words “ with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner ” were omitted therefrom.

For the purpose of such incorporation the term “ special Act ” in the said Acts shall be construed to mean this Order and the term “ Company ” shall mean the Undertakers.

Interpreta-
tion.

4. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order and by the

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Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order unless the context otherwise requires the same respective meanings And—

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“ the Order of 1886 ” means the Cranleigh Water Order 1886 ;

“ the Order of 1912 ” means the Chiddingfold and District Water Order 1912 ;

“ the Act of 1921 ” means the Water Undertakings (Modification of Charges) Act 1921 ;

“ the Order of 1922 ” means the Chiddingfold and District Water (Modification of Charges) Order 1922 made by the Minister of Health on the twenty-second day of November 1922 under the provisions of the Water Undertakings (Modification of Charges) Act 1921 ;

“ the undertaking ” means the undertaking of the Undertakers as existing from time to time ;

“ the Chiddingfold District ” means the limits for the supply of water defined by the Order of 1912 ;

“ the Chiddingfold Company ” means the Chiddingfold and District Water Company Limited ;

“ the limits of supply ” means the limits within which the Undertakers are from time to time authorised to supply water ;

“ the existing limits ” means the limits within which the Undertakers were immediately prior to the commencement of this Order authorised to supply water ;

“ the added limits ” means the area added by this Order to the existing limits ;

“ the directors ” means the directors of the Undertakers.

5. The Cranleigh Water Company Limited shall be the Undertakers. Undertakers for the purposes of this Order and are in this Order referred to as “ the Undertakers.”

6. The purchase by the Undertakers of the property undertaking and business of the Chiddingfold Company as described in and upon the terms of an Agreement dated the twelfth day of December one thousand nine hundred and twenty-five and made between the Undertakers of the one part and the Chiddingfold Company of the other part (set forth in the First Schedule to this Order) is hereby sanctioned and the said Agreement is hereby confirmed and as from the commencement of this Order the said property undertaking and business shall form part of the undertaking. Transfer of Chiddingfold undertaking.

7. Nothing in this Order or in the Agreement scheduled thereto shall entitle the Chiddingfold Company to retain for their Adjustment of certain receipts.

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own benefit so much of any water charges meter rents or other charges paid or payable in advance as shall be attributable to any period after the commencement of this Order but such charges rents or other payments shall be apportioned and so much thereof as is attributable to any period after the said date shall be paid over to the Undertakers by the Chiddingfold Company.

Repeal of
Orders of
1912 and
1922.

8.—(1) The Order of 1912 and the Order of 1922 shall as from the commencement of this Order be and the same are hereby repealed except the provisions thereof set out in the Second Schedule to this Order. Provided always that the said repeal of Article 26 (Rates for domestic supply) and of Article 31 (Price of supply by measure) of the Order of 1912 shall operate as from the first quarter day after the commencement of this Order.

(2) The provisions of the said Orders which are set out in the Second Schedule to this Order shall continue in force within and shall apply to so much of the undertaking as is within the Chiddingfold District and as from the commencement of this Order the said provisions and until the said repeal thereof Articles 26 and 31 of the Order of 1912 shall be read and construed as if the Undertakers had been therein referred to instead of the Chiddingfold Company.

Pending
actions not
to abate.

9. Any action arbitration or proceeding or any cause of action arbitration or proceeding pending or existing by or against or in favour of the Chiddingfold Company shall not abate or be discontinued or be in anywise prejudicially affected by reason of the transfer to the Undertakers of the undertaking authorised by the Order of 1912 or of anything in this Order but the same may be continued prosecuted and enforced by against or in favour of the Undertakers as and when it might have been continued prosecuted and enforced by against or in favour of the Chiddingfold Company if this Order had not been made but not further or otherwise.

Contracts to
be binding.

10. All contracts agreements conveyances deeds leases and other instruments affecting the Chiddingfold Company and in force at the commencement of this Order shall (subject as hereinafter provided) be as binding and of as full force and effect against or in favour of the Undertakers and may be enforced as fully and effectually as if instead of the Chiddingfold Company the Undertakers had been a party thereto or bound thereby or entitled to the benefit thereof :

Provided that no contract agreement conveyance deed lease or other instrument made or entered into by the Chiddingfold Company after the twenty-third day of December one thousand nine hundred and twenty-five and extending beyond the thirtieth day of June one thousand nine hundred and twenty-six shall be binding on or of any force or effect against or in favour of the

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Undertakers if made or entered into without the consent in writing of the Undertakers. A.D. 1926.

11. All rents rates and charges and other sums and debts due and payable or accruing due to the Chiddingfold Company at the commencement of this Order shall be payable to and may be collected and recovered by the Undertakers in the same manner and with and by the same benefits and processes as those with and by which the Chiddingfold Company might have collected and recovered the same and shall belong to the Undertakers for their own benefit.

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 Collection
 of outstand-
 ing debts.

12. All books and documents which if this Order had not been made would have been evidence in respect of any matter for or against the Chiddingfold Company shall be admitted in evidence in respect of the same or the like matter for or against the Undertakers.

Books &c.
 to remain
 evidence.

13. All officers and persons who at the commencement of this Order have in their possession or under their control any books documents papers moneys or effects forming part of the undertaking of the Chiddingfold Company shall be liable to account for and deliver up the same to the Undertakers or to such persons as the Undertakers may appoint to receive the same and be subject to the same consequences on refusal or neglect as if such officers and persons had been appointed by and become possessed of such books documents papers moneys and effects for the Undertakers.

Officers to be
 accountable
 for books &c.

14.—(1) In addition to any other lands which the Undertakers are under the Order of 1886 authorised to take or purchase the Undertakers may subject to the limitation mentioned in subdivision (2) of this Article from time to time purchase take on lease or otherwise acquire by agreement and use and hold for the purposes of the undertaking any lands and any easements rights or privileges (not being an easement right or privilege of water in which persons other than the parties to the agreement have an interest) in over or affecting any lands which they may from time to time require and the Undertakers may on any lands acquired by them under this Article make maintain alter or discontinue such cisterns tanks aqueducts drains cuts sluices pipes culverts engines buildings offices and dwellings and other works (other than works for taking or intercepting water) as may be required for the purposes of or in connection with the undertaking :

Purchase
 of lands by
 agreement.

Provided that the Undertakers shall not on any lands so acquired so long as the same are held by them create or permit a nuisance or erect or authorise the erection thereon of any houses or similar buildings except offices and dwellings for persons in their employ and such buildings as may be required for the purposes of or in connection with the undertaking.

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Protection
of water
supply.

(2) The total quantity of land held by the Undertakers at any one time under this Article shall not exceed twenty-five acres in the whole.

15.—(1) For the purpose of protecting against pollution nuisance encroachment or injury any of the waters which the Undertakers are empowered to take the Undertakers may by agreement purchase take on lease or otherwise acquire any lands and may hold such lands and any other lands which the Undertakers may have acquired for the purposes of the undertaking so long as they shall deem it necessary or expedient for those purposes :

Provided that the Undertakers shall not create or permit the creation or continuance of any nuisance on any lands acquired under this Article nor without the approval of the Minister of Health erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the undertaking but the restrictions of this Article as to the erection of buildings shall not apply in respect of lands leased or sold by the Undertakers.

(2) The Undertakers may in and upon the lands referred to in sub-division (1) of this Article construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Undertakers are empowered to take from being polluted and the Undertakers may for the purposes aforesaid carry any such drain sewer or water-course under across or along any street or road traversing the said lands or within the limits of supply subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

(3) The Undertakers may make and carry into effect agreements with the owners lessees or occupiers of any lands with reference to the execution by the Undertakers or by such owners lessees or occupiers of works for draining such lands or for more effectually connecting conveying and preserving the purity of the waters which the Undertakers are for the time being authorised to take.

Persons
under
disability
may grant
easements
&c.

16. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit lease any such lands to the Undertakers and may subject to the provisions of those Acts and of this Order grant to the Undertakers any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to

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lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

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17. The Undertakers may on any land for the time being belonging to or leased by them erect fit up maintain and let houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of the undertaking.

Power to
 erect &c.
 dwellings
 for officers
 and servants.

18. The limits within which the Undertakers may supply water shall extend to and include in addition to the existing limits the parishes and portions of parishes following (that is to say) :—

Extension
 of limits of
 supply.

In the rural district of Hambledon in the county of Surrey—

The parishes of Alfold and Dunsfold;

The parish of Chiddingfold except that part consisting of 48 acres or thereabouts which lies to the west of an imaginary line commencing on the parish boundary at a point 500 yards or thereabouts north-east of All Saints Church at Grayswood and drawn in a south-easterly direction for a distance of 550 yards or thereabouts to the edge of Frillinghurst Wood thence in a south-westerly direction for a distance of 450 yards or thereabouts and terminating at a point on the parish boundary 750 yards or thereabouts south-east of All Saints Church aforesaid;

So much of the parish of Bramley as lies to the south-east and south of an imaginary line drawn in a north-easterly direction from the boundary between the said parish and the parish of Hascombe along the footpath leading from the premises known as "Upper House" in the said parish of Hascombe to the public road from Thorncombe Street to Palmers Cross thence in an easterly direction along the northern side of the said road to the boundary between the said parish of Bramley and the parish of Wonersh at Palmers Cross;

The parish of Hascombe (including Hascombe detached) except such part of the said parish as lies to the north of Mare Lane and to the west of the main road from Godalming to Horsham;

So much of the parish of Witley as lies to the south and south-west of an imaginary line drawn from a point on the road from Bowlers Green to the main road from Chichester to Guildford where the boundary between the parishes of Witley and Thursley crosses the said first-mentioned road in an easterly direction for a distance of two hundred and fifty yards or

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thereabouts along the said road and across the said main road thence for a distance of four hundred yards or thereabouts along the lane leading from the said main road to Parsonage Farm thence for a distance of six hundred yards or thereabouts along the eastern boundary of the wood known as Heath Hills and the northern boundary of the wood known as Banacle Firs to the junction of the road from Brook to Witley with the road from Brook to Wormley Hill thence for a distance of six hundred yards or thereabouts along the said road from Brook to Wormley Hill and thence in a south-easterly direction for a distance of four hundred yards or thereabouts to the boundary between the parishes of Witley and Chiddingfold except that part of the said parish of Witley consisting of 197 acres or thereabouts which lies to the south of an imaginary line commencing on the parish boundary at a point 400 yards north-west of All Saints Church at Grayswood and drawn in an easterly direction for a distance of 850 yards or thereabouts across the Southern Railway along the southern edge of the copse in a deer park thence along a stream in the said copse and in Stroud Wood to and terminating at a point on the parish boundary 500 yards or thereabouts north-east of All Saints Church aforesaid;

So much of the parish of Wonersh as lies to the south of the northern side of the road from Rushett Common via Run Common to Smithwood Common as is not within the existing limits:

And from and after the commencement of this Order the Undertakers may within the added limits (but subject to any provisions which are set out in the Second Schedule to this Order of the Order of 1912 or the Order of 1922 for the protection of any company body or person named therein) exercise any rights powers and privileges which they may exercise within the existing limits and the provisions of the Order of 1886 and of this Order shall subject as aforesaid and so far as applicable be in full force and have effect throughout the limits of supply.

Limiting
 powers of
 Undertakers
 to abstract
 water.

19. The Undertakers shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in some Act of Parliament or some Order confirmed or approved by Parliament.

Where
 Undertakers
 not furnish-
 ing sufficient
 supply local

20. If at any time after the expiration of five years from the commencement of this Order the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Order throughout any

part which is within the added limits of the district of any local authority the local authority of that district may in accordance with the provisions of the Public Health Act 1875 provide a supply of water in or the local authority or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in such part of such district not sufficiently supplied by the Undertakers and for the repeal of the powers of the Undertakers in that behalf.

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authority
 or company
 may supply.

If any difference shall arise between the Undertakers and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled by an arbitrator to be appointed on the application of either party by the Minister of Health.

21. The Undertakers may on all or any of the lands for the time being held by them in connection with the undertaking execute for the purposes of or in connection with the undertaking any of the works (other than wells and works for taking and intercepting water) and exercise any of the powers mentioned in or conferred by Section 12 of the Waterworks Clauses Act 1847 Provided that the Undertakers shall not under the powers of this Article create or permit the creation or continuance of any nuisance on any such lands.

As to exer-
 cise of powers
 of Section 12
 of Water-
 works
 Clauses
 Act 1847.

22. The Undertakers may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use but only with the consent in writing of the owner of the soil of such street supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if Section 29 of that Act were excepted from incorporation with the Order of 1886 and this Order.

Power to lay
 pipes in
 streets not
 dedicated to
 public use.

23. Subject to the provisions of the Waterworks Clauses Act 1847 the Undertakers may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Undertakers and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footways courts passages tramways gas or water pipes electric lines or other wires and apparatus Provided that the Undertakers shall not break up or interfere with any electric lines wires or apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Detection
 of waste.

24.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 or under any other Act relating to the Undertakers to maintain any pipe or apparatus

As to
 communica-
 tion pipes.

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used for the supply of water from any works of the Undertakers the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and be subject to the conditions of Sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Undertakers by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe or apparatus and for that purpose to open or break up any street in the limits of supply may subject to the like conditions execute such works on behalf of such owner or occupier and any expenses incurred by the Undertakers shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

Undertakers
to connect
communica-
tion pipes
with mains.

25. Notwithstanding anything contained in any Act or Order relating to the Undertakers the Undertakers shall have the exclusive right of executing any works on any of the water mains of the Undertakers for connecting any communication pipe therewith and the Undertakers shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Undertakers execute on any such main any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Undertakers in so doing shall be repaid by the owner or occupier so requesting and shall be recoverable as a civil debt.

Power to
Undertakers
to repair
communica-
tion pipes.

26. If it should appear to the Undertakers that by reason of any injury to or defect in any communication pipe which the Undertakers are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Undertakers subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Undertakers in executing such repairs shall be recoverable by the Undertakers from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier :

Provided that except in case of emergency the Undertakers shall not under the powers of this Article enter into any house or private premises unless they shall have given to the owner and occupier of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

Provisions as
to fireplugs.

27. In applying the sections of the Waterworks Clauses Act 1847 relating to fireplugs to any urban or rural district within the limits of supply the council of such district shall be

substituted for the town commissioners and the concluding paragraph of Section 38 of the said Act shall be taken to include the pattern and price of the fireplugs as well as their position and number :

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Provided that if the pattern of any fireplug which may be decided upon and fixed as a result of an inquiry held under the provisions of the said Section 38 shall cause or allow a waste of water or an access of air to the Undertakers' mains then the Undertakers shall be at liberty to have the same removed and the expense thereof shall be borne by the council affected and the Undertakers in equal shares.

28. If any difference arise between the Undertakers and any road authority canal or other company other than a railway company whose lands or works the Undertakers have power to cross under the authority of this Order for the purpose of meeting the demands for water within the limits of supply as to the mode of laying down repairing altering or enlarging their conduits or pipes or as to the facilities to be afforded for the same or as to any other matter herein referred to the same shall unless otherwise provided by this Order be settled by an engineer to be appointed by the Minister of Health at the request of either party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration.

29.—(1) As from the first quarter day after the commencement of this Order the following provisions shall have effect within the limits of supply (that is to say) :—

Rates for
domestic
supply.

The Undertakers shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled to demand from the Undertakers a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at a rate not exceeding twelve pounds per centum per annum of the rateable value of the premises supplied and so in proportion for any shorter period than a year :

Provided that the Undertakers shall not be bound to afford a supply of water to any premises for a less sum than fourpence a week ;

The rateable value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor. Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement

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ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction;

In addition to the foregoing charges the Undertakers may charge in respect of every water-closet beyond the first (for which no additional charge shall be made) on any premises a sum not exceeding seven shillings and sixpence per annum and for every fixed bath a sum not exceeding ten shillings per annum such additional sums to be paid quarterly in advance and be recoverable in all respects with and as the water rate.

(2) Article 18 (Rates for supply for domestic purposes) and Article 19 (Rates for water-closets and baths) of the Order of 1886 are hereby repealed as from the first quarter day after the commencement of this Order.

Increased
rate in
certain cases.

30. In the case of any dwelling-house or part of a dwelling-house supplied with water by the Undertakers being situate in any part of the limits of supply which is for the time being supplied wholly with water by pumping the Undertakers may add to the water rate which would otherwise be payable in respect of such house or part of a house an additional sum at the rate of two per centum per annum upon the rateable value thereof.

Supply by
meter.

31. The Undertakers may supply water for other than domestic purposes on such terms and conditions as the Undertakers think fit and may supply water by meter either for domestic or other purposes and the moneys payable for the supply of water under this Article shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Price of
supply by
meter.

32. The price to be charged by the Undertakers for a supply of water by meter shall not exceed three shillings a thousand gallons.

Revision
of rates.

33. On the application of the Undertakers or of a local authority having jurisdiction within the limits of supply the Minister of Health may if satisfied that circumstances have materially changed make an order varying either by way of increase or decrease the rates for the supply of water by this Order authorised. Provided that the rates prescribed in any such order shall be such as to provide (after paying all proper expenses of and in connection with the working management and maintenance of the undertaking and making good depreciation and paying all other costs charges and expenses (if any) properly chargeable to revenue) a reasonable return for the share capital of the Undertakers. Provided also that

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in the absence of exceptional reasons the Minister shall not alter the rates at less intervals than every five years. A.D. 1926.

34.—(1) The Undertakers shall not be bound to supply with water otherwise than by meter (a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required or (b) any workhouse hospital asylum (whether public or private) sanatorium school club hotel public house or inn or (c) any boarding house capable of accommodating at least twelve persons or (d) any public institution which is habitually occupied by at least twenty persons.

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 Supply to
 certain
 premises.

(2) Where a supply of water to a farmhouse is used for farming purposes the Undertakers may require that the supply for farming purposes shall be taken by meter but nothing in this Article shall authorise the Undertakers to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof.

(3) The minimum quarterly charge for a supply of water by meter to any of the premises in this Article mentioned shall be one-fourth of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same rateable value.

35. Section 35 of the Waterworks Clauses Act 1847 in its application to the Undertakers shall be read and construed as if the words "one-eighth part" were substituted therein for the words "one-tenth part".

Application of
 Section 35 of
 Waterworks
 Clauses Act
 1847.

36. Where water supplied for domestic purposes is used for horses washing carriages or motor cars or for other purposes in premises where horses carriages or motor cars are kept the Undertakers may if a hose-pipe or other similar apparatus is used charge any additional sum not exceeding twenty shillings per annum and (where more motor cars than one are ordinarily kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first and any sum chargeable under the provisions of this Article shall be recoverable with and as the water rate.

Charges for
 supply by
 hose-pipe.

37. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Undertakers so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Rates
 payable by
 owners of
 small houses.

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Contracts for
supplying
water in
bulk.

38. The Undertakers may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of supply to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply. Provided also that nothing in this Article shall authorise the Undertakers to lay any mains or other pipes or to interfere with any street beyond the limits of supply :

Provided further that nothing in this Article shall authorise the Undertakers to supply in bulk outside the catchment area of the Thames as such catchment area is defined in Section 5 of the Thames Conservancy Act 1924 any water abstracted by them within the said catchment area.

Purchase of
water in
bulk.

39. The Undertakers may enter into and carry into effect agreements made with any company or person supplying water under parliamentary authority for the purchase of water in bulk by the Undertakers for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Undertakers for the purposes of the undertaking.

Guarantees
by district
councils.

40.—(1) Any urban or rural district council whose district is in whole or in part within the limits of supply may give and enter into any guarantee or contract for securing payment to the Undertakers of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Undertakers for the purpose of or with respect to the providing or laying down by the Undertakers of any main pipe or works for or with respect to the supply of water within any part of such district.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise in like manner as money may be raised under the provisions of any such general Act any money which may become payable to the Undertakers under this Article.

(3) Nothing in this Article shall be deemed to authorise any such urban or rural district council to use any water supplied by the Undertakers under any such guarantee or contract as aforesaid in any part of the district of such council which is

beyond the limits of supply and within the limits for the supply of water of any other company or person supplying water under parliamentary authority without the consent of such other company or person.

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 District
 Order.*

41.—(1) The Undertakers may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans water-closets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Undertakers in providing such materials and executing such work shall be paid by the person requiring the same.

Power to
 supply
 fittings.

(2) Any fittings let for hire under the provisions of this Article shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

42. The Undertakers may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Power to sell
 meters.

43. The Undertakers shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Undertakers
 not bound to
 supply
 several
 houses by
 one pipe.

44. A notice to the Undertakers from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers or be given by the consumer personally at the office of the Undertakers.

Notice of
 discon-
 tinuance.

45. Before any person connects or disconnects any meter by means of which any of the water of the Undertakers is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Undertakers of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under the superintendence of any officer of or person authorised by the Undertakers and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice to
 Undertakers
 of con-
 necting or
 disconnect-
 ing meters.

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For protec-
tion of
Surrey
County
Council.

46. For the protection of the County Council of the Administrative County of Surrey (in this Article called "the County Council") the following provisions shall notwithstanding and in addition to any other provisions in this Order contained unless otherwise agreed in writing between the County Council and the Undertakers obtain and have effect (that is to say):—

- (1) It shall not be lawful for the Undertakers to supply water derived from any source in the County of Surrey in bulk or otherwise beyond or for use beyond the limits of that county :
- (2) The Undertakers shall unless prevented by unavoidable cause or accident or during necessary repairs whenever required by the County Council supply to any public authority within the limits of supply water by measure for the purposes set forth in Section 37 of the Waterworks Clauses Act 1847 and also shall subject as aforesaid supply water by measure to court-houses police-stations and to school-houses of elementary schools (as defined by the Elementary Education Act 1870) and to schools of art technical institutions and other higher educational institutions provided or aided by the County Council at a fixed rate not exceeding one shilling and ninepence per thousand gallons (exclusive of meter rent) Provided always that the Undertakers shall not be bound to supply water for the purposes in this sub-division mentioned unless such supply as aforesaid is required in or adjoining any street in which a main or pipe of the Undertakers is or shall be laid and if and so long as such supply would in any way interfere with or unduly diminish the supply for domestic purposes within the limits of supply :

Provided that for the purposes of this sub-division Article 3 of the Order of 1922 shall be read as if this Article were referred to therein instead of Article 22 of the Order of 1912 :

- (3) All aqueducts conduits or lines of pipes to be laid in or along any main road or in upon or across any county or main road bridge and the approaches thereto shall be laid in such position in or at the side thereof as the County Council in writing under the hand of their surveyor may reasonably direct :
- (4) The provisions of Section 30 of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall so far as relates to all main roads and county or main road bridges opened and broken up or interfered with by the Undertakers in exercise of the powers of this Order (except for laying

connecting or repairing consumers' service pipes as to which three days' notice shall be given and except in cases of accidental leakage or burst or other emergency in which cases no notice shall be required) be read and have effect as if seven clear days were substituted therein for three clear days :

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District
Order.*

- (5) The plan required by Section 31 of the last-mentioned Act shall be accompanied by a section of the proposed works on a scale of not less than four feet and shall be delivered to the County Council or their surveyor by the Undertakers not less than in the case of a bridge one month and in all other cases fourteen days before they commence to open or break up any main road or interfere with any county or main road bridge for the purpose of executing the works :
- (6) Nothing in this Order shall authorise the Undertakers to interfere with the structural part of any county or main road bridge without the consent in writing of the surveyor of the County Council which consent may be given upon such conditions (not being a money payment) as the County Council or such surveyor may reasonably determine :
- (7) The Undertakers shall not permit any trench made by them in any main road or county or main road bridge to be open for more than fifty yards in length at any place where only one cart can pass at the side of such trench or for more than one hundred yards in length where only two carts can pass at the same time :
- (8) Where any pipe conduit or other work of the Undertakers is to be laid or constructed beneath the surface of any such road or bridge as aforesaid the same shall if possible be laid or constructed at such a depth that not less than three feet shall intervene between the surface of such road or bridge and the upper surface of any such pipe conduit or work Any difference as to the possibility of so laying or constructing any such pipe conduit or work shall be determined by arbitration as hereinafter in this Article provided :
- (9) Nothing in this Order shall interfere with the right of the County Council to alter the level of or deviate drain widen reconstruct or improve in any reasonable manner any main road or the approaches to any county or main road bridge in or along which any mains pipes or works of the Undertakers shall have been laid and the Undertakers shall with all convenient speed on receiving ten days' notice in writing under the hand of the surveyor of the County Council so to do alter the position of any such mains pipes or works in such

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manner and to such extent as may be reasonably prescribed by such notice or as in case of difference shall be determined by arbitration in the manner hereinafter prescribed and the County Council shall repay to the Undertakers the expense reasonably incurred by the Undertakers in carrying out such alteration of position of any such mains pipes or works. Provided that during the alteration deviation draining widening reconstruction or improvement of such main road or bridge approach the County Council shall afford all reasonable facilities to enable the Undertakers to temporarily carry mains pipes or works along such road or approach so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such mains or pipes :

- (10) Nothing in this Order shall interfere with the right of the County Council at any time or times to remove alter widen raise or rebuild any county or main road bridge over near or attached to which any mains pipes or works of the Undertakers are carried in the same manner as they might have removed altered widened raised or rebuilt such bridge if this Order had not been made and such mains pipes or works had not been laid over or near or attached to such bridge and the County Council shall not except in cases of their own negligence or default make any compensation to the Undertakers for any expense or loss to which the Undertakers may be put in consequence of any such removal alteration widening raising or rebuilding and in the event of any such bridge over or near or attached to which any such mains pipes or works are laid or carried being removed altered widened raised or rebuilt as aforesaid the Undertakers shall (if and so far as it may be reasonably necessary so to do in order to enable the County Council to carry out the work or works aforesaid) at their own cost in all things alter the position of any works by which such mains pipes or works are carried over near or attached to such bridge as aforesaid. Provided that during the removal alteration widening raising or rebuilding of such bridge as aforesaid the County Council shall afford all reasonable facilities to enable the Undertakers to temporarily carry mains pipes or works across any stream or river so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such mains or pipes :

- (11) If the Undertakers in the execution of any works in or affecting any such road or bridge as aforesaid shall cause any damage injury or disturbance to such road

or bridge and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Waterworks Clauses Act 1847 it shall be lawful for the County Council after reasonable notice to the Undertakers of the alleged neglect or refusal and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Undertakers shall repay to the County Council all costs charges and expenses which the County Council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence :

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 Order.*

- (12) If any difference at any time arises between the County Council and the Undertakers touching this Article or anything to be done or not to be done thereunder such difference shall be referred to and settled by an engineer to be appointed in default of agreement by the Ministry of Health on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

47. For the protection of the Mayor Aldermen and Burgesses of the Borough of Godalming (in this Article referred to as "the Corporation") the following provision shall unless otherwise agreed in writing between the Corporation and the Undertakers have effect (that is to say) :—

For protec-
 tion of
 Godalming
 Corporation.

The Undertakers shall not directly or indirectly supply water in bulk or otherwise within or for use within the area in which the Corporation are by any Act of Parliament or Provisional Order now authorised to supply water except in any part of such area which is within the added limits.

48. For the protection of the Southern Railway Company (in this Article called "the Southern Company") the following provisions shall unless otherwise agreed between the Southern Company and the Undertakers apply and have effect :—

For pro-
 tection of
 Southern
 Railway
 Company.

- (1) In laying down altering improving enlarging extending maintaining repairing or renewing any mains pipes or other works in the exercise of the powers contained in the Order of 1912 or in this Order upon across under over or in any way affecting the railways lands and property now belonging to the Southern Company or any lands or property now used or occupied by them or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Southern Company (hereinafter referred to as "the

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railway works") the same shall except in cases of emergency be done under the superintendence (if the same be given) and to the reasonable satisfaction of the chief engineer of the Southern Company and only according to plans submitted to and previously reasonably approved by him in writing and in such manner as shall be so approved by him or in case of difference as may be determined by arbitration in manner hereinafter provided. Provided that if the said engineer shall not signify his approval or disapproval of any plans or proposals so submitted to him within twenty-one days after the same are delivered to him he shall be deemed to have approved thereof. Provided also that where in the opinion of the said engineer there is not a reasonably sufficient space on any bridge to lay any mains or pipes between the road surface and the structure of any such bridge the Southern Company may require such mains or pipes to be carried below outside or (if reasonably required by them) independently of the structure of any such bridge and shall afford all reasonable facilities for the purpose :

- (2) All such works shall be done by and at the expense of the Undertakers who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over any bridge or over any level crossing of the railways of the Southern Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Undertakers. Provided always that if the Southern Company within twenty-one days after the receipt by them of notice of the intention of the Undertakers to lay any mains or pipes under or across any level crossing on their railways elect by notice in writing to the Undertakers so to do they may themselves lay any such mains and pipes under or across such level crossing under the superintendence and to the reasonable satisfaction of the Undertakers' engineer and the amount reasonably expended by the Southern Company in so doing shall be repaid to them by the Undertakers but if for fourteen days after any such notice is given by the Southern Company to the Undertakers the Southern Company neglect to proceed with due diligence to lay such mains or pipes the Undertakers may forthwith lay the same :
- (3) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to the railway works and so as not to cause any interruption to the passage or conduct of traffic on the railways of the Southern

Company and so as to obstruct as little as possible the access to any passenger station of the Southern Company:

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Order.*

- (4) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works or operations of the Undertakers or the bursting leakage or failure of any of the mains pipes or works of the Undertakers in under over or near to the railway works the Undertakers shall make compensation to the Southern Company in respect thereof and the amount of such compensation unless agreed upon shall be determined by arbitration in the manner hereinafter provided :
- (5) The Undertakers shall give twenty-one days' notice in writing to the Southern Company before commencing any works affecting the railway works except in cases of emergency and then so soon as is possible after the beginning of the work or the necessity for the same shall have arisen :
- (6) All mains or pipes and other works of the Undertakers upon across over under or in any way affecting the railway works shall be at all times maintained in good repair by the Undertakers and in default of their being so maintained the Southern Company may from time to time by notice in writing signed by their said engineer and delivered at the principal office for the time being of the Undertakers require the Undertakers to forthwith put the same into good repair and if the Undertakers for fourteen days after the receipt of such notice refuse or neglect to proceed with the repair of the same and do not dispute the necessity therefor the Southern Company may without any further notice to the Undertakers repair the same and all costs and expenses reasonably incurred by them in or about such repair shall be repaid to them by the Undertakers Provided that in case of accidents happening or immediate danger being apprehended to the railway works by reason of any such main pipe or other work as aforesaid being in want of repair the Southern Company may without giving such notice as aforesaid execute such repairs as may be immediately necessary Provided also that the Southern Company shall as soon as possible give notice to the Undertakers of their intention to execute the same and any reasonable costs and expenses to which the Southern Company may be put by reason of any such repairs shall be repaid to them by the Undertakers :
- (7) The Undertakers shall bear and on demand pay to the Southern Company all reasonable costs of the superintendence by them of the construction of the works and

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repairs thereof and all reasonable costs of watching lighting and protection of the railway works with reference to and during such construction and repair so far as such costs may in case of difference be determined by arbitration as hereinafter provided to have been necessary but such superintendence by the Southern Company shall not relieve the Undertakers from liability for any accident which may be occasioned by or through the operations of the Undertakers or by their contractors agents or workmen :

- (8) If at any time it is found necessary in order to enable the Southern Company under their existing powers to carry out any alterations renewals repairs or extension of their railway or works to alter the position of the said mains pipes or works the Undertakers shall on receiving notice in writing from the Southern Company so to do at their own cost and to the reasonable satisfaction of the engineer of the Southern Company alter the position of the said mains pipes or works or temporarily support the same so far as may be necessary to enable the Southern Company to carry out such alterations renewals repairs or extensions of their railway or works and the provisions of this Article shall apply to the said mains pipes or works in their altered position :
- (9) Any dispute or difference which may arise between the Southern Company and the Undertakers with reference to the provisions of this Article or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

For protec-
tion of
Edward Lee
Rowcliffe.

49. For the protection of Edward Lee Rowcliffe or other the owner for the time being of the Hall Place Estate (in this Article called "the owner") the following provisions shall except so far as otherwise agreed between the Undertakers and the owner apply and have effect (that is to say) :—

- (1) The Undertakers shall whenever required by the owner afford to the owner a supply of water by meter and deliver into tanks of a total capacity of not less than two thousand five hundred gallons provided by the owner a sufficient quantity of water for the supply of such part of the Hall Place Estate as is situate in the parishes of Hascombe and Alfold :
- (2) Notwithstanding the provisions of Article 17 (Limits of pressure) of the Order of 1886 any supply afforded by the Undertakers to any part of the Hall Place Estate

within the Parish of Dunsfold shall be afforded under such pressure that the water so supplied shall reach the top storey of every house in that portion of the said estate to which such supply is afforded :

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Order.*

- (3) The Undertakers shall not be required to give a constant supply under sub-divisions (1) and (2) of this Article but shall keep the water laid on for at least two hours every day. Provided always that in the case of a supply under sub-division (1) of this Article it shall not be obligatory on the Undertakers to keep the water laid on as aforesaid on any day after the Undertakers shall have once on such day filled the tanks referred to in that sub-division :
- (4) The Undertakers shall lay down and maintain all necessary pipes to give a supply under subdivision (1) of this Article within the limits of supply to a point in Benbow Lane two thousand feet westward of the Guildford to Horsham main road and the owner shall lay down and maintain any other pipes and apparatus necessary for that purpose :
- (5) The price to be charged for any supply under subdivision (1) of this Article shall not exceed two shillings and threepence per thousand gallons :

Provided that for the purposes of this sub-division Article 3 of the Order of 1922 shall be read as if this Article were referred to therein instead of Article 45 of the Order of 1912. Provided also that the price per thousand gallons charged by the Undertakers under this Article shall not at any time exceed the price per thousand gallons charged for the same period under Article 32 of this Order :

- (6) If any difference arises between the Undertakers and the owner touching this Article or anything to be done or not to be done thereunder such difference shall be referred to and settled by an engineer to be appointed in default of agreement by the Ministry of Health on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

50. The limitation prescribed by the Order of 1886 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as "additional capital") not exceeding twenty-five thousand pounds including the premiums (if any) on the issue thereof :

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Provided that the share capital of the Undertakers for the purposes of the undertaking shall not exceed in the whole thirty-five thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

Limits of
dividend
on capital.

51. The Undertakers shall not in any one year pay out of their profits any larger dividend on the additional capital to be raised under the powers of this Order than seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said sum of seven pounds per centum per annum or than seven pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital.

Dividend
on different
classes of
shares to be
paid propor-
tionately.

52. In case in any year or half-year (if the Undertakers declare a dividend half-yearly) the funds of the Undertakers applicable to dividend shall be insufficient to pay the full amount of the prescribed maximum rate of dividend on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividend of each class.

New capital
to be sold by
auction or
tender.

53.—(1) All ordinary and preference shares forming part of the additional capital authorised by this Order shall be issued in accordance with the provisions of this Article.

(2) All shares so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall from time to time determine Provided as follows—

(a) Notice of the intended sale shall be given in writing to the clerk to the district council of every district within the limits of supply and to the secretary of the London Stock Exchange at least fourteen days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits;

(b) A reserve price shall be fixed and notice thereof shall be sent by the directors of the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be;

(c) No lot offered for sale shall comprise shares of greater nominal value than one hundred pounds;

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid;

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Order.*

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares which have been so offered for sale and are not sold may be offered at the reserve price in manner prescribed by a resolution passed by the directors to the holders of shares or stock of the Undertakers and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportion as the directors may think fit or to one or more of these classes of persons only. Provided that in case of an offer to holders of shares if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares which have been offered for sale in accordance with the provisions of sub-division (2) or of sub-divisions (2) and (3) of this Article and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this Article and any such shares then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares.

54.—(1) The amount of all money borrowed by the Undertakers and secured by mortgage of the undertaking shall not exceed in the whole one-half part of the amount of the capital of the Undertakers actually raised by the issue of shares including any premiums that may have been or may be obtained on the sale of any such shares under the Cranleigh District Water Orders 1886 and 1926.

Power to
borrow.

(2) No higher rate of interest than six pounds per centum per annum shall be paid by the Undertakers without the consent of the Minister of Health in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid and Article 8 of the Order of 1886 in its

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Application
of moneys.

application to any moneys so borrowed shall be read and have effect as if the words "six pounds per centum per annum" had been inserted therein in lieu of the words "five pounds per centum per annum."

55. All moneys including premiums raised under this Order shall be applied only to the purposes of the undertaking to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares under the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend and the Undertakers may apply to the purposes of this Order to which capital is properly applicable any moneys which they are already authorised to raise and which may not be required by them for the purposes for which the Undertakers were authorised to raise the same.

Receipt in
case of
persons not
sui juris.

56. If any money is payable to a shareholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Undertakers.

Copy of
Confirming
Act to be
registered.

57. The Undertakers shall deliver to the Registrar of Joint Stock Companies a printed copy of the Act confirming this Order and he shall retain and register the same and if such copy is not so delivered within three months after the passing of the said Act the Undertakers shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Undertakers who knowingly and wilfully authorises such default shall incur the like penalty. There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on the registration of any document other than the memorandum or the abstract required to be filed with the Registrar by a receiver or manager or the statement required to be sent to the Registrar by the liquidator in a winding-up in England.

Authentica-
tion and
service of
notices by
Undertakers.

58. Any notice to be served by the Undertakers on a person supplied with water shall be sufficiently authenticated by the signature of the secretary or other officer of the Undertakers for the time being authorised in writing by the directors being affixed thereto in writing or in print or by a stamp or if it be a notice to pay any charge in respect of a supply of water or water fittings by the name either of the secretary or of such other officer as aforesaid being affixed thereto as aforesaid and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last-known or usual place of abode or of business or by delivering the same to some inmate at his last-known or usual place of abode or business or to any inmate of

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the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

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59. Every person who shall wilfully (without the consent of the Undertakers) or negligently close or shut off or interfere with any valve cock or other work or apparatus belonging to the Undertakers whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Undertakers) be liable on conviction to a penalty not exceeding five pounds and the Undertakers may in addition thereto recover the amount of any damage by them sustained. Provided that this Article shall not apply to a consumer closing a valve fixed on his communication pipe.

Penalty for
closing
valves and
apparatus.

60. Save as otherwise expressly provided by any Act or Order from time to time relating to the undertaking all offences against and all penalties forfeitures costs and expenses imposed or recoverable under any such Act or Order or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery
of penalties
&c.

61. Proceedings for the recovery of any demand made under the authority of any Act or Order from time to time relating to the undertaking or any incorporated enactment whether provision is or is not made for the recovery thereof in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery
of demands.

62. Penalties imposed under this Order and the Acts wholly or in part incorporated therewith for one and the same offence shall not be cumulative.

Penalties
not
cumulative.

63. Any summons or warrant issued for any of the purposes of this Order may contain in the body thereof or in the schedule thereto several sums due from the same company body or person.

Several
sums in one
summons.

64. A judge of any court or a justice shall not be disqualified from acting in the execution of this Order by reason of his being liable to the payment of any rate.

Judges not
disqualified.

65. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers and may be paid by the Undertakers as part of their expenses on revenue account.

Costs of
Order.

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*Cranleigh
District
Order.*

The SCHEDULES referred to in the foregoing Order.

FIRST SCHEDULE.

AGREEMENT.

AN AGREEMENT made the 12th day of December 1925 between THE CRANLEIGH WATER COMPANY LIMITED (hereinafter called "the Cranleigh Company") of the one part and THE CHIDDINGFOLD AND DISTRICT WATER COMPANY LIMITED (hereinafter called "the Chiddingfold Company") of the other part.

WHEREAS the Cranleigh Company was formed in the year 1886 with the object of supplying water to the village and parish of Cranleigh and to any part of the County of Surrey within a radius of 10 miles measured from the Parish Church of Cranleigh and has since been supplying water within the Parish of Cranleigh and a portion of the Parish of Wonersh under the authority of the Cranleigh Water Order 1886;

And whereas the Chiddingfold Company was formed in the year 1911 with the object of supplying water in the districts of Brook Chiddingfold and Dunsfold in the County of Surrey and districts adjoining thereto and has since been supplying water and carrying on the business of a water company within the parishes of Chiddingfold and Dunsfold and a portion of the Parish of Witley under the authority of the Chiddingfold and District Water Order 1912;

And whereas the Cranleigh Company's sources of supply of water have for some time past been barely sufficient for the present needs of the district supplied by it whilst the Chiddingfold Company's sources of supply have a capacity largely in excess of that required to meet the present requirements of the district supplied by it;

And whereas the limits of supply of the Cranleigh Company and the Chiddingfold Company respectively under their respective Orders whilst close to one another do not actually adjoin but there is interposed between them a small area within which there is not any existing company corporation body of commissioners or person empowered by Act of Parliament to supply water;

And whereas the sources of supply of water of the Cranleigh Company and the Chiddingfold Company (hereinafter called

“ the two Companies ”) together have a capacity sufficient to supply the present requirements of both their districts and also the intervening area and all prospective future requirements of such districts for a number of years and it is in the interests of both Companies and also of the said districts and the public that the two Companies and their undertakings should be amalgamated and the intervening area included in the district which the amalgamated Company is authorised to supply ;

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—
*Cranleigh
District
Order.*

And whereas the issued capital of the Chiddingfold Company is £10,204 divided into 10,204 shares of £1 each of which 8,951 shares have been acquired and are now owned by the Cranleigh Company ;

And whereas the authorised capital of the Cranleigh Company is £10,000 in 2,000 shares of £5 each of which 1,400 shares only have been issued :

Now it is hereby agreed as follows :—

1. This Agreement is subject to the approval by special resolution of the proprietors of the two Companies and to the Cranleigh Company obtaining a Provisional Order to confirm or to give effect to the provisions of this Agreement and empowering the Cranleigh Company to supply water in the area lying between the respective limits of supply of the two Companies and is also subject to such alterations additions or amendments as Parliament or the Ministry of Health may make therein but in the event of such Provisional Order not being obtained within twelve months of the date hereof or such further time as the parties hereto may agree or of any material alteration being made in this Agreement or the clauses to give effect thereto it shall be in the option of either party to this Agreement by notice in writing given to the other of them as soon as reasonably practicable after the expiration of such twelve months or further time or the making of such material alterations as the case may be to withdraw from this Agreement and in such event this Agreement shall be void and cease to have effect and in the latter case so much of any such Provisional Order as relates to the subject matter of this Agreement and to the supply of water within the water limits of the Chiddingfold Company shall be withdrawn.

2. The Chiddingfold Company shall sell and transfer and the Cranleigh Company shall purchase and take over all and singular the lands buildings waterworks plant machinery stock-in-trade raw materials goods chattels moneys credits bills notes and things in action of the Chiddingfold Company and the goodwill undertaking and business thereof as existing on the date on which this Agreement becomes unconditional (hereinafter referred to as “ the transfer date ”) with the full benefit of all the rights of the Chiddingfold Company under the Chiddingfold and District Water Order 1912 and with the full benefit of all current contracts

[Ch. lvi.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 7) Act, 1926.

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—
*Cranleigh
District
Order.*

and engagements of the Chiddingfold Company in connection with its business on the transfer date and generally all the real and personal property of the Chiddingfold Company whatsoever and wheresoever as existing on the transfer date.

3. As part of the consideration for the said sale the Cranleigh Company shall pay satisfy and discharge all the debts and liabilities of the Chiddingfold Company as existing on the transfer date and adopt perform and fulfil as from that date all its current contracts and engagements in connection with the said business and shall at all times keep the Chiddingfold Company indemnified against all such debts liabilities contracts and engagements and all actions proceedings claims and demands in respect thereof.

4. As further part of the consideration for the said sale the Cranleigh Company shall (if the Chiddingfold Company shall go into liquidation within three calendar months from the transfer date) pay and at all times keep the Chiddingfold Company its liquidator and contributories indemnified against all the costs and expenses of and incidental to the winding up of the Chiddingfold Company and of carrying the said sale into effect.

5. The balance of the consideration for the said sale shall be the sum of £5,612 4s. being the equivalent of 11s. per share on the present issued share capital of the Chiddingfold Company Provided that should the Chiddingfold Company go into liquidation before the sale is completed and the Cranleigh Company surrender all the issued shares of the Chiddingfold Company then held or owned by it so as effectually to disentitle it to participate as a shareholder in any distribution of assets of the Chiddingfold Company in the winding up thereof the balance of the purchase consideration payable under this clause shall be such a sum of cash only as shall be equivalent to 11s. per share on the balance of the issued shares of the Chiddingfold Company then remaining outstanding.

6. The Cranleigh Company shall accept without investigation such title as the Chiddingfold Company has to all the real and personal property and premises hereby agreed to be transferred.

7. The purchase and transfer shall be completed and possession of the premises shall be given by the Chiddingfold Company to the Cranleigh Company at the expiration of one month after the transfer date upon which date the consideration payable by the Cranleigh Company hereunder so far as presently payable shall be paid by it and thereupon the Chiddingfold Company and its liquidator (if any) shall execute and do and procure all other necessary parties (if any) to execute and do at the expense of the Cranleigh Company all such assurances and things as shall be reasonably required by the Cranleigh Company for vesting in it the said premises hereby agreed to be sold or any part thereof and giving to it the full benefit of this Agreement.

8. Until delivery of possession to the Cranleigh Company the Chiddingfold Company and its liquidator (if any) shall continue to carry on the business of the Chiddingfold Company in the same manner as heretofore so as to maintain the same as a going concern and they shall be deemed as from the transfer date until delivery of possession to have been and to be carrying on such business on behalf of the Cranleigh Company and shall account and be entitled to be indemnified accordingly.

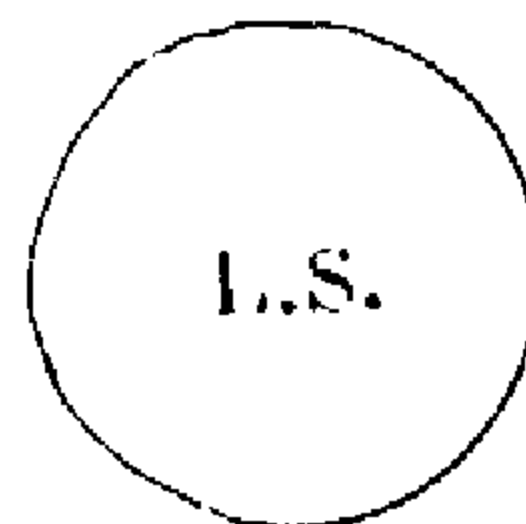
9. Subject to completion and to the consent of the offices the Cranleigh Company shall be entitled to the benefit of all insurances of the premises current on the transfer date.

10. Until the dissolution of the Chiddingfold Company the Cranleigh Company shall at its own expense produce at such time and to such persons and in such places as the liquidator for the time being of the Chiddingfold Company shall require all the books documents and papers of the Chiddingfold Company hereby agreed to be sold.

11. The Cranleigh Company shall apply for and use their best endeavours to obtain the Provisional Order hereinbefore referred to to confirm this Agreement and authorise the Cranleigh Company and the Chiddingfold Company to carry the same into effect and the Chiddingfold Company shall aid and support the Cranleigh Company in applying for such Provisional Order and for that purpose shall supply to the Cranleigh Company all such information particulars and evidence in the possession of the Chiddingfold Company or any of their officers or servants as the Cranleigh Company may reasonably require and the Chiddingfold Company by themselves their directors officers and servants shall support the application by evidence or otherwise as the Cranleigh Company may require.

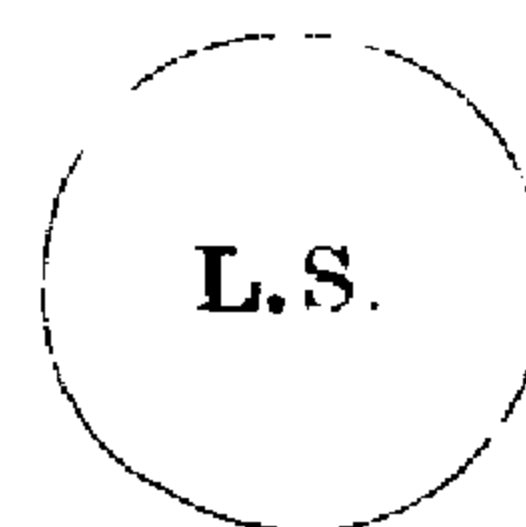
In witness whereof the Cranleigh Company and the Chiddingfold Company have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Cranleigh Water
Company Limited was hereunto affixed in
the presence of



GERALD CHADWYCK HEALEY }
FREDERICK WARREN } Directors.
GORDON V. HAYMAN Secretary.

The common seal of the Chiddingfold and
District Water Company Limited was here-
unto affixed in the presence of



ALBERT A. CATCHPOLE }
STEPHEN ROWLAND } Directors.

A.D. 1926.

—
*Cranleigh
District
Order.*

A.D. 1926.

SECOND SCHEDULE.

*Cranleigh
District
Order.*

PROVISIONS OF ORDER OF 1912 SAVED FROM REPEAL.

* * * * *

Limits of
Order.

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be the whole of the parishes of Dunsfold and Chiddingfold and so much of the parish of Witley as is coloured blue on the map signed in duplicate by an assistant secretary of the Board of Trade one copy whereof has been deposited in the Parliament Office House of Lords and the other at the Offices of the Undertakers.

* * * * *

Power to
maintain and
construct
waterworks
and to
supply
water.

16. The Undertakers may in upon or under the lands or in or under the streets roads or highways in upon or under which the same are respectively situate but as regards such lands only if and so long as they are possessed of the same or of any necessary rights or easements entitling them so to do maintain continue alter enlarge renew and improve their existing waterworks hereinafter described The existing waterworks hereinbefore referred to are situate in the county of Surrey and are :—

Work No. 1 A well and pumping station as now existing situate in the parish of Witley in the north side of the enclosure numbered 527 in the said parish on the 25-inch Ordnance Map of Surrey (Second Edition 1897) Sheet XXXVIII-9;

Work No. 2 A well as now existing situate in the parish of Witley in the said enclosure about one and a half chains in a northerly direction from the well and pumping station (Work No. 1) hereinbefore described;

Work No. 3 A tank or reservoir as now existing with the pipe leading thereto situate in the parish of Witley in the north-east corner of the field or enclosure numbered 530 in the said parish on the before-mentioned Ordnance Map Sheet XXXVIII-9;

Work No. 4 A line or lines of pipes as now existing situate wholly in the parish of Witley commencing at the well and pumping station (Work No. 1) hereinbefore described and terminating in the north side of the tank or reservoir (Work No. 3) hereinbefore described;

Work No. 5 A well and pumping station as now existing situate in the parish of Dunsfold in the field or enclosure numbered 201 in the said parish on the before-mentioned Ordnance Map Sheet XLVI-1;

Work No. 6 A well as now existing situate in the parish of Dunsfold in the said field or enclosure numbered 201 in the said parish on the before-mentioned Ordnance Map Sheet XLVI-1 about two chains measured in a south-westerly direction from the well and pumping station (Work No. 5) hereinbefore described;

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—
*Cranleigh
District
Order.*

Work No. 7 A tank or reservoir as now existing situate in the parish of Dunsfold in the south-east portion of the field or enclosure numbered 231 in the said parish on the before-mentioned Ordnance Map Sheet XLVI-1 at a point one and a half chains or thereabouts measured in a north-westerly direction from the south-east corner of that enclosure;

Work No. 8 A line or lines of pipes as now existing situate in the parishes of Chiddingfold and Dunsfold commencing in the parish of Chiddingfold at the termination of the line of pipes (Work No. 15) hereinafter described and terminating in the parish of Dunsfold at the point of intersection of the road from Burningfold Farm to Durfold and the road from Loxley Bridge to the said farm;

Work No. 9 A line or lines of pipes as now existing situate wholly in the parish of Dunsfold commencing on the south side of Loxley Bridge at a point in the road leading from Dunsfold to Durfold twenty yards or thereabouts measured in a south-westerly direction from the centre of the said bridge and terminating in the west side of the reservoir (Work No. 7) hereinbefore described;

Work No. 10 A line or lines of pipes as now existing situate wholly in the parish of Dunsfold commencing at the well (Work No. 5) hereinbefore described and terminating in the north side of the reservoir (Work No. 7) hereinbefore described;

Work No. 11 A line or lines of pipes as now existing situate wholly in the parish of Dunsfold commencing by a junction with the line of pipes (Work No. 9) hereinbefore described at a point in the road leading from Rickhurst to Furnace Bridge ten yards or thereabouts measured in a westerly direction from the north-western boundary of the field or enclosure numbered 252 in the said parish on the before-mentioned Ordnance Map Sheet XLVI-1 and terminating in the road leading from Dunsfold to Loxwood at a point in that road twenty-five yards or thereabouts measured in a southerly direction from the southern corner of the field or enclosure numbered 532 in the said parish on the said Ordnance Map Sheet XLVI-5;

[Ch. lvi.] *Ministry of Health* [16 & 17 GEO. 5.]
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A.D. 1926.

*Cranleigh
District
Order.*

Work No. 12 A line or lines of pipes as now existing situate wholly in the parish of Dunsfold commencing by a junction with the line of pipes (Work No. 11) hereinbefore described at a point in the said road leading from Dunsfold to Loxwood two and a half chains or thereabouts measured in a southerly direction from the north-east corner of the field or enclosure numbered 504 in the said parish on the before-mentioned Ordnance Map Sheet XLVI-5 and terminating in the road leading from Rickhurst to Furnace Bridge at a point half a chain or thereabouts measured in an easterly direction from the north-east corner of the field or enclosure numbered 444 in the said parish on the said Ordnance Map Sheet XLV-8;

Work No. 13 A line or lines of pipes as now existing situate wholly in the parish of Dunsfold commencing by a junction with the line of pipes (Work No. 9) hereinbefore described at a point in the public footpath leading from Dunsfold to Loxley Bridge two and a half chains or thereabouts measured in a south-easterly direction from the north-east corner of the field or enclosure numbered 339 on the before-mentioned Ordnance Map Sheet XLV-4 and terminating in the road leading from Gratton Corner to St. Mary's Church within the said parish at a point one and a half chains or thereabouts measured in a northerly direction from the north-west corner of the field or enclosure numbered 308 in the said parish on the said Ordnance Map Sheet XLV-4:

And the Undertakers may maintain continue alter enlarge renew and improve any mains or pipes already laid down in connection with the before-mentioned works or any of them.

Subject to the provisions of this Order the Undertakers may also in upon or under the lands or in or under the streets roads or highways in upon or under which the same are shown on the deposited plans but as regards such lands only while they are possessed of the same or of any necessary rights or easements entitling them so to do make and maintain in the lines and according to the levels shown on the deposited plans and deposited sections the new works hereinafter described.

The new works authorised by this Order are situate in the parishes of Witley and Chiddingfold in the county of Surrey and are as follows :—

Work No. 14 A line or lines of pipes wholly situate in the parish of Witley commencing at the well (Work No. 1) hereinbefore described and terminating in the south side of the reservoir (Work No. 16) hereinafter described;

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvi.]
Provisional Orders Confirmation (No. 7) Act, 1926.

Work No. 15 A line or lines of pipes situate in the parishes of Witley and Chiddingfold commencing in the parish of Witley at the reservoir (Work No. 16) hereinafter described and terminating at High Street Green in the parish of Chiddingfold by a junction with the line of pipes (Work No. 8) hereinbefore described;

A.D. 1926.

—
*Cranleigh
 District
 Order.*

Work No. 16 A tank or reservoir situate in the parish of Witley in the south-west portion of the field numbered 705 in the said parish on the 25-inch Ordnance Map of Surrey (Second Edition 1897) Sheet XXXVIII-13 at a point two and a half chains or thereabouts measured in a north-easterly direction from the south-west corner of that field.

In addition to the foregoing works the Undertakers may upon any lands upon which they are entitled under this Order to construct or maintain such works but as regards such lands only if and so long as they are possessed of the same or of the necessary rights or easements entitling them so to do make and maintain all such cuts channels catchwaters tunnels adits pipes conduits culverts drains sluices bye-washes shafts wells bores water towers overflows waste water channels gauges filter beds tanks banks walls bridges embankments piers approaches engines machinery and appliances as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any of them and (subject to the consent of any road authority and person affected) telegraphs and telephones necessary or convenient in connection with the before-mentioned works or any of them Provided that no telegraphs or telephones constructed and maintained under the provisions of this Order shall be used for the transmission of telegrams within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Subject to the provisions of this Order the Undertakers may collect impound take use divert and appropriate for the purposes of their water undertaking all such springs streams or waters as may be intercepted by the works by this Order authorised to be constructed or maintained and may supply and sell water for domestic and other purposes within the limits of supply.

* * * * *

44. The Undertakers shall within one year of the commencement of this Order lay down the necessary pipes and furnish in accordance with the provisions of this Order a supply of water for domestic use to such of the premises known as Prestwick Little Prestwick Farm Little Prestwick House and High Prestwick adjoining Prestwick Lane in the parish of Chiddingfold the owners or occupiers whereof shall execute an agreement binding themselves to pay to the Undertakers for

For protection of
 W. G. Jackson
 A. Ransom
 A. H. Jackson
 and
 W. J. H. Whittall.

[Ch. lvi.] *Ministry of Health* [16 & 17 GEO. 5.]
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A.D. 1926.

—
*Cranleigh
District
Order.*

three successive years at least for the water supplied at the rates specified in this Order or in the event of such rates in any such year being less in the aggregate than thirty pounds then the sum of thirty pounds for such year but the Undertakers shall not be required to give a constant supply to the premises to which they are bound to furnish a supply under this section but shall keep the water laid on so as to give a supply to the premises the owners or occupiers of which shall have entered into the said agreement for at least two hours every day Provided always that if a requisition shall be made on the Undertakers to give a supply under the provisions of Section 35 of the Waterworks Clauses Act 1847 as varied by this Order the Undertakers may calculate as against the party or parties making such requisition the expenses incurred by the Undertakers in providing and laying down pipes to give such constant supply as if any pipes or works laid down for the purpose of furnishing a supply under this section had been provided and laid down in pursuance of such requisition.

THE ORDER OF 1922.

* * * * *

3. The provisions of Sections 22 . . . and 45 of the Order of 1912 are hereby modified so as to authorise the Company to charge for the supply of water by measure in pursuance of the said Section 22 for the supply of water for domestic purposes for the supply of water by measure generally within the limits of supply and for the supply of water in bulk in respect of the said part of Hall Place Estate any rates sum or prices not exceeding by more than forty per centum the maximum rates minimum sum and maximum prices respectively prescribed by the said sections :

* * * * *

Provided further that the provisions of subsection (2) of Section 1 of the Act of 1921 shall extend to the revision of the power of charging for the supply of water in pursuance of the said Section 45 on the application of Edward Lee Rowcliffe or other the owner for the time being of the Hall Place Estate.

Given under the Official Seal of the Minister of Health
this Eighth day of April One thousand nine hundred
and twenty-six.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

SOUTHWOLD WATER.

A.D. 1926.

Provisional Order under the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 empowering the Southwold Waterworks Company Limited to supply water in bulk outside their statutory limits of supply.

Southwold
Order.

The Minister of Health in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows :—

1. This Order may be cited as the Southwold Water Order 1926 and the Southwold Water Order 1886 the Southwold Water Order 1904 and this Order may be cited together as the Southwold Water Orders 1886 to 1926.

Short and
collective
titles.

2. This Order shall come into force and have effect upon the day when the Act of Parliament confirming this Order is passed.

Commence-
ment of
Order.

3.—(1) In this Order unless the context otherwise requires—

Interpre-
tation.

“The Undertakers” means the Southwold Waterworks Company Limited ;

“The limits of supply” means the limits for the time being of the Undertakers for the supply of water.

(2) The several words terms and expressions to which by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings.

4. The Undertakers may from time to time enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of supply to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under Parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes or for the flushing of drains within the limits of supply Provided also that nothing in this section shall authorise the Undertakers to lay any mains or other pipes or to interfere with any street beyond the limits of supply.

Supply in
bulk.

5. All costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of
Order.

[Ch. lvi.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 7) Act, 1926.

A.D. 1926.

*Southwold
Order.*

Given under the Official Seal of the Minister of Health
this Tenth day of April One thousand nine hundred
and twenty-six.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

WEST SURREY WATER.

*West Surrey
Order.*

*Provisional Order under the Gas and Water Works
Facilities Act 1870 and the Gas and Water Works
Facilities Act 1870 Amendment Act 1873 for empower-
ing the West Surrey Water Company to increase
their capital and for other purposes.*

The Minister of Health in pursuance of the powers given
to him by the Gas and Water Works Facilities Act 1870 the
Gas and Water Works Facilities Act 1870 Amendment Act 1873
and of all other powers enabling him in that behalf hereby
orders as follows :—

Short and
collective
titles.

1. This Order may be cited as the West Surrey Water Order
1926 and the West Surrey Water Act 1869 the West Surrey
Water Act 1877 the West Surrey Water Act 1888 the West
Surrey Water Act 1901 the West Surrey Water Company
(Capital Issues) Consent 1921 the West Surrey Water Company
(Modification of Charges) Order 1922 and this Order may be
cited together as the West Surrey Water Acts and Orders 1869
to 1926.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon
the day when the Act of Parliament confirming this Order is
passed which date is hereinafter referred to as “the commence-
ment of this Order.”

Incorpora-
tion of Acts.

3. So far as the same relate to the powers conferred by
this Order the provisions of the Lands Clauses Acts (except
with respect to the purchase and taking of lands otherwise than
by agreement and with respect to the entry upon lands by the
promoters of the undertaking) and of the Companies Clauses
Consolidation Act 1845 as amended by subsequent Acts with
respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing
the payment of calls ;

The forfeiture of shares for non-payment of calls ;

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvi.]
Provisional Orders Confirmation (No. 7) Act, 1926.

The remedies of creditors of the Company against the shareholders; A.D. 1926.

The borrowing of money by the Company on mortgage or bond; *West Surrey Order.*

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts and the Waterworks Clauses Acts 1847 and 1863 are (except where expressly varied by this Order) incorporated with and form part of this Order:

Provided that section 44 of the Waterworks Clauses Act 1847 shall for the purposes of this Order have effect as if the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" were omitted therefrom.

For the purpose of such incorporation the term "special Act" in the said Acts shall be construed to mean this Order and the term "Company" shall mean the Undertakers.

4.—(1) In this Order the expression "the Undertakers" means the West Surrey Water Company. *Interpretation.*

(2) The several words terms and expressions to which by the Acts incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings.

5. The purchase by the Undertakers prior to the commencement of this Order of the lands described in the schedule to this Order annexed is hereby confirmed. *Confirmation of purchase of lands.*

6. The Undertakers upon the lands described in the schedule to this Order annexed so long as they are possessed of the same may maintain and continue alter extend improve and renew or discontinue the tank and waterworks in connection therewith existing at the commencement of this Order and may erect maintain alter enlarge extend improve and renew new or additional waterworks with all necessary machinery and apparatus and do all such acts as may be proper for storing and supplying water within the existing limits of supply: *Power to construct additional waterworks &c.*

[Ch. lvi.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 7) Act, 1926.

A.D. 1926.

—
West Surrey
Order.

Additional
capital.

Provided that nothing in this Order contained shall authorise the Undertakers to construct any works for taking or intercepting water from the said lands.

7. In addition to the capital already authorised to be raised by the Undertakers they may—

- (1) Raise any further sums not exceeding in the whole the sum of one hundred thousand pounds by the issue of new ordinary shares or stock or new preference shares or stock or wholly or partly by any one or more of those modes respectively (in this Order referred to as "the additional capital") but the Undertakers shall not issue any share under the authority of this Order of less nominal value than ten pounds nor shall any share or stock issued under the authority of this Order vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained on the sale thereof as hereinafter provided has been paid in respect thereof Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce including any premiums which may be obtained on the sale thereof the sum of one hundred thousand pounds :
- (2) Borrow on mortgage of their undertaking in respect of the additional capital such sum or sums not exceeding in the whole one-half of the additional capital at the time actually raised by the issue of shares or stock including the premiums (if any) realised on the sale thereof but no sum shall be borrowed in respect of any additional capital so raised until the Undertakers have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock or shares at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up :
- (3) Borrow on mortgage (at any time after the commencement of this Order and without obtaining the certificate of a justice under the fortieth section of the Companies Clauses Consolidation Act 1845) in respect of the capital issued before the commencement of this Order a sum or sums (inclusive of the sums already borrowed in respect thereof) equal in the aggregate to one-half of the total amount of such capital.

Shares or
stock to be
sold by
auction or
tender.

8.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this Article.

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvi.]
Provisional Orders Confirmation (No. 7) Act, 1926.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner and at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine :

A.D. 1926

—
*West Surrey
Order.*

Provided as follows :—

- (a) Notice of the intended sale shall be given in writing to the clerk of the local authority of every district within the limits for the supply of water by the Undertakers and to the Secretary of the London Stock Exchange at least seven days before the day of the auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits ;
- (b) A reserve price shall be fixed by the directors of the Undertakers and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be ;
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds ;
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid ;
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and to the holders of preference shares or stock of the Undertakers in accordance with the provisions of Sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only Provided that in a case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst

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A.D. 1926. the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

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(4) Any shares or stock which have been offered for sale in accordance with subdivision (2) or with subdivisions (2) and (3) of this Article and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this Article and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors of the Undertakers may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

Application
of money.

9. All moneys raised under this Order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend.

Limit of
dividend on
capital.

10. The Undertakers shall not in any year declare or make out of their profits any larger dividend on the additional capital than seven pounds in respect of every one hundred pounds of so much of such capital as may be issued as ordinary capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said sum of seven pounds per centum per annum or than six pounds in respect of every one hundred pounds of so much of the new capital as may be issued as preference capital.

Appoint-
ment of a
receiver.

11. The mortgagees of the Undertakers under this Order may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth part of the total amount for the time being owing by the Undertakers on mortgage under the authority of this Order.

Power to
create
debenture
stock.

12. The Undertakers may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 as amended by the Companies Clauses Act 1869 and of Section 38 of the Act of 1888 Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

13.—(1) The Undertakers may create and issue any preference shares or stock or debenture stock (all of which are in this Article included in the expression “stock”) which they are authorised to create and issue so as to be redeemable on such terms and conditions as may be specified in a resolution of the Undertakers passed at a special meeting convened for the purpose.

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Redeemable
 preference or
 debenture
 stock.

(2) If it is so provided in the resolution the Undertakers may—

- (a) call in and pay off the stock or any part thereof at any time before the fixed date of redemption; and
- (b) redeem the stock or any part thereof either by paying off the stock or by issuing to the holder of any stock subject to his consent other stock in substitution therefor.

(3) The Undertakers may for the purpose of providing money for paying off the stock or of providing substituted stock create and issue new stock (redeemable or irredeemable) or re-issue stock originally created and issued as aforesaid Provided that the creation and issue for that purpose of any particular class of stock shall not make the total nominal amount of such stock exceed the amount of that class of stock which the Undertakers are for the time being authorised to create except during the necessary interval between the creation and issue of the new stock and the redemption of the old stock Provided also that any stock created and issued solely in substitution for stock shall not be subject to the provisions of Article 8 of this Order.

(4) The Undertakers shall not redeem out of revenue any stock so created as aforesaid.

14. All mortgages granted by the Undertakers in pursuance of the powers of any Act of Parliament before the date of this Order and subsisting at that date shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Order but nothing in this Article contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Undertakers.

Existing
 mortgages
 to have
 priority.

15. The Undertakers shall not without the consent of the Minister of Health pay interest at a higher rate than six pounds per centum per annum in respect of any moneys borrowed on mortgage or raised by the creation and issue of debenture stock under the authority of this Order.

Limit of
 interest on
 moneys
 borrowed.

16. The Undertakers may sell lease exchange or otherwise dispose of to such persons and in such manner as the Undertakers think fit any lands and property for the time being

Undertakers
 may sell
 lease &c.
 spare lands.

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A.D. 1926. belonging to the Undertakers which they may not require for
 — the purposes of their undertaking (subject nevertheless to the
West Surrey provisions of the Lands Clauses Consolidation Act 1845 with
Order. respect to the sale of superfluous lands so far as such provisions
 are in each case applicable) and on any sale lease exchange or
 disposal by the Undertakers of any such lands and property
 whether the same be subject to the said provisions of the Lands
 Clauses Consolidation Act 1845 or not they may reserve to
 themselves all or any part of the water or water rights or other
 easements belonging thereto and may make the sale lease
 exchange or disposal subject to such reservations accordingly
 and may also make any such sale lease exchange or disposal
 subject to such other reservations special conditions restrictions
 and provisions with respect to use of water exercise of noxious
 trades or discharge or deposit of manure sewage or other impure
 matter as they think fit.

Application 17. Section 35 of the Waterworks Clauses Act 1847 in its
 of Section 35 application to the Undertakers shall be read and construed as
 of Water- if the words "one-eighth part" were substituted therein for the
 works words "one-tenth part."
 Clauses Act.

Provision &c. 18. The Company shall provide instal and maintain in a
 of additional satisfactory working condition additional plant for the purifica-
 plant. tion of the water to be supplied to the consumers within the
 area of supply The additional plant shall consist of efficient
 up-to-date filtering apparatus chlorinating apparatus and appli-
 ances and works incidental thereto as shall at all times render
 the water pure and wholesome for domestic consumption and
 to the satisfaction of the Minister of Health The Company
 shall apply the first moneys to be raised under the powers of
 this Order in providing and installing the said additional plant.

Temporary 19.—(1) For the purpose of constructing enlarging extending
 discharge of repairing cleansing emptying or examining any of the works
 water into authorised to be constructed or maintained by them the Under-
 streams. takers may cause the water in such works to be temporarily
 discharged into any available stream or watercourse.

(2) In the exercise of the power conferred by this Article the
 Undertakers shall do as little damage as may be and shall make
 compensation to all persons for all damage sustained by them
 by the exercise of such power the amount of compensation to be
 settled in default of agreement by arbitration in accordance with
 the provisions of the Arbitration Act 1889.

Costs of 20. All costs charges and expenses of and incidental to the
 Order. applying for preparing obtaining and confirming this Order and
 otherwise in relation thereto shall be paid by the Undertakers.

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Provisional Orders Confirmation (No. 7) Act, 1926.

The SCHEDULE referred to in the foregoing Order. A.D. 1926.

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A piece of land situate in the Parish of Chertsey in the County of Surrey and now belonging to or contracted to be purchased by the Undertakers containing twenty and a half acres or thereabouts forming part of St. Ann's Hill in the Parish of Chertsey aforesaid.

Given under the Official Seal of the Minister of Health this
Fifteenth day of April One thousand nine hundred
and twenty-six.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

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